

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

**COMPLAINANT’S MOTION FOR AN EXTENSION OF TIME TO FILE A RESPONSE
TO RESPONDENTS PETITION REGARDING ATTORNEYS FEES**

Pursuant to Rules 69, 71, and 102, of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainant, through its Counsel, Marcus A. Nussbaum, Esq. respectfully submits this motion to the Commission for an extension of time to file a Response to respondents’ Petition Regarding Attorneys Fees.

ARGUMENT

From the date of the filing of respondents’ instant Petition Regarding Attorneys Fees, the undersigned has been and continues to be in the process of obtaining evidence needed to oppose said Petition. The Commission may be aware that it is complainant’s contention that the respondents, by their counsel Jon Werner, Esq. and Gerard S. Doyle, Esq. have attempted to perpetrate a fraud upon the Commission by seeking the very same attorneys fees which were in fact *waived* by respondents in the presence of a Federal Judge and other individuals as part of a global settlement of multiple lawsuits, and which were memorialized in a written Settlement Agreement which was ratified by the parties hereto. The evidence needed to oppose said Petition

has not been readily available but will be of tantamount importance for the Commission's consideration in this matter, and specifically on the issue of respondents' ratification of the Settlement Agreement and waiver of their right to seek attorneys fees herein.

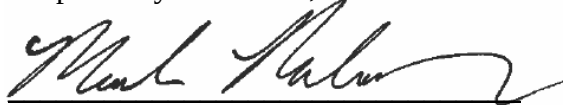
The undersigned has attempted to confer with counsel for respondents regarding the instant application, however, despite multiple requests by the undersigned, counsel has declined to provide a substantive response as to whether or not respondents consent. Per the attached email correspondence, counsel has instead opted to demand that complainant preview for respondents its opposition to the Petition Regarding Attorneys Fees, and has further demanded the complainant identify what evidence it intends to provide to the Commission in opposition to the Petition Regarding Attorneys Fees.

Accordingly, and in light of the foregoing, complainant respectfully requests that their time within which to interpose a Response to respondents' instant Petition be extended to September 5, 2017.

WHEREFORE, it is respectfully requested that Complainant's instant motion for an extension of time within which to interpose a Response to respondents' instant Petition Regarding Attorneys Fees be granted in its entirety, together with such other and further relief as the Commission may deem just and proper under the circumstances.

Dated: August 4, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

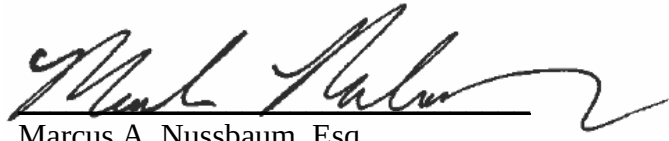
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANT'S MOTION FOR AN EXTENSION OF TIME TO FILE A RESPONSE TO RESPONDENTS PETITION REGARDING ATTORNEYS FEES** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

Gerard S. Doyle, Jr.
The Law Office of Doyle & Doyle
Attorneys for Respondents
636 Morris Turnpike
Short Hills, NJ 07078

by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', with a long, sweeping horizontal stroke extending to the right.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
August 4, 2017

APPENDIX “1”

Marcus A. Nussbaum

Subject: FMC Docket No.: 14-16

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]

Sent: Thursday, August 3, 2017 5:47 PM

To: Gerry Doyle; Jon Werner

Subject: Re: FMC Docket No.: 14-16

Counsel,

Per the Secretary's email below, please note your consent or lack thereof to complainant's application for an extension of time to file a response to the Petition for Attorneys fees in this matter by 10:00 a.m. on August 4, 2017.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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Marcus A. Nussbaum

Subject: FMC Docket No.: 14-16

From: Jon Werner [mailto:jwerner@lyons-flood.com]

Sent: Thursday, August 3, 2017 5:59 PM

To: 'Marcus Nussbaum'; 'Gerry Doyle'

Subject: RE: FMC Docket No.: 14-16

Mr. Nussbaum,

Please provide me with the application you intend to file so I can discuss same with my clients and indicate our position.

Regards,

Jon Werner
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Tel: (212) 594-2400
Fax: (212) 594-4589
Mob: (917) 509-2797
jwerner@lyons-flood.com



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Marcus A. Nussbaum

Subject: FMC Docket No.: 14-16

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]

Sent: Thursday, August 3, 2017 6:03 PM

To: Jon Werner

Cc: Gerry Doyle

Subject: Re: FMC Docket No.: 14-16

Mr. Werner,

The application will not change with the exception of noting that we have conferred and that your client has either consented or not.

I await your advise.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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Marcus A. Nussbaum

Subject: FMC Docket No.: 14-16

From: Jon Werner [mailto:jwerner@lyons-flood.com]

Sent: Thursday, August 3, 2017 9:11 PM

To: 'Marcus Nussbaum'

Cc: 'Gerry Doyle'

Subject: RE: FMC Docket No.: 14-16

Mr. Nussbaum,

As you know, Respondents made it very clear on August 30, 2016, nearly one year ago, in their opposition to Complainant's Motion for Dismissal (Doc. No. 78) that Respondents would be seeking an award of attorney fees as the prevailing parties in this matter.

In order to determine whether to consent to the requested extension, Respondents would like to know what prevented you from seeking this "evidence" for the past year?

And specifically what type of evidence are you claiming may exist but "has not been readily available" at this time?

Regards,

Jon Werner
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Tel: (212) 594-2400
Fax: (212) 594-4589
Mob: (917) 509-2797
jwerner@lyons-flood.com



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Marcus A. Nussbaum

Subject: FMC Docket No.: 14-16

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]

Sent: Friday, August 4, 2017 8:34 AM

To: Jon Werner

Cc: Gerry Doyle

Subject: Re: FMC Docket No.: 14-16

Mr. Werner,

Absent a substantive response from you by 11:00 a.m. this morning as to whether or not your clients consent to the extension of time, I will note for the Commission that we have conferred and that you have declined the opportunity to state your clients' consent or lack thereof to the application. Complainants are under no obligation to preview their opposition to the Petition Regarding Attorneys Fees.

While we are on the subject of discussing events of the "past year" and your recollection of same, a review of your Petition indicates that you have conveniently forgotten that you personally drafted and negotiated a Settlement Agreement in the presence of a Federal Judge wherein you and your clients waived the right to seek attorneys fees in this matter. Inasmuch as Mr. Doyle seems to somewhat care about his professional reputation and legal career, I can see why he hesitated to continue to allow his fingerprints to remain on this matter and has deferred the "dirty work" of filing the Petition to you.

Rest assured that your selective memory and other issues that render you unfit for the practice of law will be addressed with the Grievance Committee at the appropriate time.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 888-426-4370

Fax: 347-572-0439

<http://www.nussbaumlawfirm.com/>

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Marcus A. Nussbaum

Subject: FMC Docket No.: 14-16

From: Jon Werner [mailto:jwerner@lyons-flood.com]

Sent: Friday, August 4, 2017 10:22 AM

To: 'Marcus Nussbaum'

Cc: 'Gerry Doyle'

Subject: RE: FMC Docket No.: 14-16

Mr. Nussbaum,

Rule 71(a) provides that for non-dispositive motions, such as the motion you attempted to file on August 1 seeking an extension of time, "the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement."

You were specifically reminded of this obligation by the Secretary of the Commission when she rejected your filing for failing to comply with Rule 71(a).

Rule 71(a) requires more than a one sentence email from you inquiring as to whether Respondents consent or object to Complainant's motion.

I asked you two very reasonable questions in light of your cryptic statements in the rejected motion: (1) what kind of evidence are you claiming was not available and for which you need an extension of time to obtain, and (2) why couldn't you obtain this evidence during the approximately one year that you have known Respondents intended to seek attorney fees in this matter.

From your response below, I see that you are uninterested in conferring in good faith, notwithstanding the Rules. Since you are not willing to confer then under such circumstances my clients have no choice but to oppose your motion entirely. Kindly provide this entire email conversation to the Commission with your motion, if you decide to file same, and indicate that Respondents' reason to oppose your motion was your unwillingness to confer.

With respect to your personal accusations about my character I will only say that you seem to fundamentally misunderstand the difference between a position taken during negotiation of a settlement and a final settlement agreement fully signed and agreed to by all parties. As for your reference to Mr. Doyle, please understand that Mr. Doyle remains engaged as counsel for the Respondents in this matter, and your insinuations about my assisting Mr. Doyle with the preparation of Respondents' Petition are incorrect.

Regards,

Jon Werner
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Tel: (212) 594-2400
Fax: (212) 594-4589
Mob: (917) 509-2797
jwerner@lyons-flood.com



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